

TENTATIVE RULINGS for LAW and MOTION

January 14, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: In the matter of 741 Plum Lane, Davis, CA 95616
Case No. CV-2023-2115

Hearing Date: January 14, 2026 **Department Eleven** **9:00 a.m.**

Petitioner City of Davis' request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, subds. (b), (c), (d), 453.) While the Court takes judicial notice of Exhibits A-K, the Court does not take judicial notice of Exhibit L (settlement agreement [executed on December 27, 2024]) because it is not attached to the request for judicial notice nor is it in the Court's file. (Cal. Rules of Court, rules 3.1113(l), 3.1306(c); Notice of Settlement [filed 1/7/25].)

Petitioner's unopposed petition for appointment of receiver over real property located at 741 Plum Lane, Davis, California, Assessor's Parcel Number 034-231-011 ("Property") and owned by respondent Carol Joyce is **GRANTED IN PART**. (Code Civ. Proc., § 564; Health & Saf. Code, §§ 17980.6, 17980.7, subd. (c).) The Court grants the relief requested as stated in petitioner's proposed order appointing a receiver, lodged on November 18, 2025, except for section 5(I) under the "Prohibitory Injunctions" title. Health and Safety Code section 17980.7 allows the Court to prohibit respondent from claiming a state tax deduction for the Property "in the taxable year of the initial order or notice" and "for the following year," "if the owner fails to comply within a reasonable time." (Health & Saf. Code, § 17980.7, subd. (b).) The Court finds that petitioner issued its initial order or notice to repair or abate on August 2, 2022. (RJN, Exh. B [Sanders Decl., ¶ 5].) The Court further finds that respondent failed to comply within a reasonable time with the terms of the initial order or notice to repair or abate. (Hardy Aff., ¶¶ 5-14, Exhs. L, N, O, P, Q, R; RJN Exh. B [Sanders Decl., ¶¶ 4-17].) Petitioner's proposed order prohibits respondent from claiming a state tax deduction for the Property for "2017 and all future years during the pendency of the receivership." (Proposed Order, Section 5(I), p. 10.) However, petitioner provides no documentation or authority in support of its request to prohibit respondent from claiming a state tax deduction outside of taxable years 2022 and 2023. (Health & Saf. Code, § 17980.7, subd. (b).) Additionally, this Court finds that the proffered hourly attorney billing rates claimed by petitioner are reasonable. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004 ["[t]he reasonable hourly rate is that prevailing in the community for similar work"]; Gharibian Decl., ¶¶ 13-22.) Furthermore, petitioner has established that the attorney hours expended and the costs incurred on the receivership petition are reasonable. (Gharibian Decl., ¶¶ 12, 23, Exhs. Y, Y(2), Z.) Therefore, the Court awards petitioner **\$53,978.50** in attorneys' fees and **\$2,467.16** in costs for a total award of **\$56,445.66**.

Petitioner is **DIRECTED** to lodge and serve an amended proposed order, to correct the taxable years in which respondent is prohibited from claiming a state tax deduction for the Property, by no later than **January 21, 2026**. Petitioner is also **DIRECTED** to serve a copy of the signed amended order on all parties within 10 days of its execution.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Deacon v. Lee et al.

Case No. CV-2025-0034

Hearing Date: January 14, 2026

Department Fourteen

9:00 a.m.

Defendants Kimberly Tsong-Min Lee and The Desert Law Group's request for judicial notice as to Exhibits 3 – 5, 11, 14 – 17 and 21 – 23 is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendants request for judicial notice as to Exhibits 2 and 6 are **DENIED**. No valid legal basis was provided regarding defendants' request as to these exhibits.

Defendants' motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1), (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The Court finds that defendants have met their burden to show that they did not owe any duty to plaintiff. (*Budd v. Nixen* (1971) 6 Cal.3d 195, 200; *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820-821; *Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & 11 Mitchell, LLP* (2013) 219 Cal.App.4th 1299, 1308-1309; *Genisman v. Carley* (2018) 29 Cal.App.5th 45, 49; see *Responsible Citizens v. Superior Ct.* (1993) 16 Cal.App.4th 1717, 1733; *Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1684 ["...the attorney-client relationship is created by some form of contract, express or implied, formal or informal."]; *Friedman v. Friedman* (1993) 20 Cal.App.4th 876, 887 ["Although an implied in fact contract may be inferred from the "conduct, situation or mutual relation of the parties, the very heart of this kind of agreement is an intent to promise *Kane, Kane & Kritzer, Inc. v. Altagen* (1980) 107 Cal.App.3d 36, 40, citation omitted ["While neither a retainer nor formal agreement is required to establish the attorney-client relationship [citation], the relationship with respect to a particular transaction is nevertheless required to create the duty of an attorney to act for his client in the transaction."]; *Zenith Ins. Co v. O'Connor* (2007) 148 Cal.App.4th 998, 1010, citing *Fox v. Pollack* (1986) 181 Cal.App.3d 954, 959 ["A] client's subjective belief that an attorney-client relationship exists, standing alone, cannot create such a relationship or a duty of care owed by the attorney to that plaintiff."]; RJN, Exhibit 5; Pott Decl., ¶ 9, Exhibit 6; UMFs 5, 7 – 9, 20 – 27.)

The Court further finds that plaintiff Katrina Deacon has not satisfied her burden of production showing a triable issue of material fact. (See *Aguilar, supra*, 25 Cal.4th at pp. 850, 862.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Magallon v. Fairmount Home Owners Association et al.**
 Case No. CV-2025-2357

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Fairmount Home Owners Association, Silvercreek Association Management and Trident Property Management's motion for protective order and order staying depositions is **CONTINUED** to **February 3, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Perez v. Wyndham Destinations, Inc., et al.**
Case No. CV-2021-0289

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Benjamin Perez' request to confirm tolling of the five-year period is **DENIED**. (Code Civ. Proc., § 583.340, subd. (c).) Plaintiff has not met his burden to show that circumstances warrant application of the exception to the five-year limitation of Code of Civil Procedure section 583.310. (*Oswald v. Landmark Builders, Inc.* (2023) 97 Cal.App.5th 240, 247, 248.)

Plaintiff's request to specially set trial is **GRANTED**. (Code Civ. Proc., § 128.)

Parties are **DIRECTED TO APPEAR** and should be prepared to select a trial date on or before February 18, 2026, or stipulate to set trial on a later date. (Code Civ. Proc., § 583.340.)

TENTATIVE RULING

Case: **Ramirez et al. v. Ceja-Reyes, Inc. et al.**
Case No. CV-2023-0029

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Defendant Westside Transplant, LLC's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's unopposed motion to dismiss the complaint of plaintiff Felipe Fajardo for failure to comply with court ordered deposition and request for terminating and monetary sanctions is **GRANTED**. (Code Civ. Proc., § 2023.030, subd. (d)(3).) The Court finds that plaintiff's continued failure to appear for his deposition, in violation of the Court's October 30, 2025, Order, warrants dismissal of plaintiff's complaint. (Code Civ. Proc., § 2023.010, subds. (d), (g); *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390 [terminating sanctions are warranted based on repeated refusals to respond to discovery requests and violation of previous court orders]; *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; Rose Decl., ¶¶ 4 – 10, Exhibits 2 – 4.)

The Court awards defendant sanctions in the amount of **\$2,492.50**. (Code. Civ. Proc., 2030.030, subd. (a); Rose Decl., ¶ 23, Exhibits 5, 6.)

Plaintiff **SHALL** pay this sanction by **February 14, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Simonis v. Simonis**
Case No. CV-2025-0893

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Defendant Brian Simonis' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

The Court finds that plaintiff Alan Simonis fails to provide any explanation for the inconsistency between the dates identified in the original complaint regarding when he discovered defendants' alleged wrongdoing, and the date identified in the first amended complaint. (Compl., ¶¶ 19, 20; FAC, ¶ 16.) Thus, the Court disregards the date identified in the first amended complaint for the purpose of determining when the statute of limitations began to run on the causes of action contained therein. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344 [where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them, the court may examine the prior complaint to ascertain whether the amended complaint is merely a sham]; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447 ["Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party's cause of action is a sham and sustain a demurrer without leave to amend."].)

The Court rules on defendant's demurrer to plaintiff's first amended complaint as follows:

- The demurrer to the first cause of action for financial elder abuse is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable four-year statute of limitations. (Welf. & Inst. Code §15610.30, 15657.7; *Bell v. Bank of California* (1908) 153 Cal. 234, 245 [a plaintiff's failure to comply with the statute of limitations is subject to a general demurrer]; *Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 101 [the statute of limitations begins to run when the plaintiff has notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation]; *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807; *Gutierrez v. Mofid* (1985) 39 Cal.3d 892, 899; Compl., ¶¶ 19, 20.)
- The demurrer to the second cause of action for conversion abuse is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable three-year statute of limitations. (Code Civ. Proc., § 338, subd. (c); *Bell, supra*, 153 Cal. at p., 245; *San Francisco Credit Clearing House v. Wells* (1925) 196 Cal. 701, 706; see *Fearon v. Dep't of Corr.* (1984) 162 Cal.App.3d 1254, 1257 ["A conversion can occur when a willful failure to return property deprives the owner of possession."]; FAC, ¶ 42.)

- The demurrer to the third cause of action for fraud is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e). The Court finds that this cause of action is barred by the applicable three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d); *Bell, supra*, 153 Cal. at p., 245; *Moreno v. Sanchez* (2003) 106 Cal.App.4th 1415, 1423 [a cause of action for fraud accrues upon discovery of the facts constituting the fraud or when the plaintiff could have discovered injury and cause through the exercise of reasonable diligence]; Compl., ¶¶ 19, 20.)
- The demurrer to the fourth cause of action for breach of fiduciary duty is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable four-year statute of limitations. (Code Civ. Proc., § 343; *Bell, supra*, 153 Cal. at p., 245; *Stalberg v. W. Title Ins. Co.* (1991) 230 Cal.App.3d 1223, 1230 [“A breach of fiduciary duty claim is based on concealment of facts, and the statute begins to run when plaintiffs discovered, or in the exercise of reasonable diligence could have discovered, that facts had been concealed.”]; Compl., ¶ 20; FAC, ¶ 61.)
- The demurrer to the fifth, sixth and seventh causes of action for constructive trust, declaratory relief and injunctive relief are **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that these are not independent causes of action but are requests for relief that are based on the second and/or third causes of action for conversion and fraud. (FAC, ¶¶ 64 – 68, 70 – 72, 74, 75.) Given the Court has sustained defendant’s demurrer to these causes of action, without leave to amend, these requests for relief necessarily fail. (See *Embarcadero Mun. Improvement Dist. v. County of Santa Barbara* (2001) 88 Cal.App.4th 781, 793; *Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 734.)
- The demurrer to the eighth cause of action for a violation of Penal Code section 496 is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable one-year statute of limitations. (Code Civ. Proc., § 340, subd. (a); Penal Code, section 340, subd. (c); *Bell, supra*, 153 Cal. at p., 245; *Naftzger v. American Numismatic Society* (1996) 42 Cal.App.4th 421, 433 [the statute of limitations runs from the date the owner discovers the identity of the person in possession of the property]; see *Switzer v. Wood* (2019) 35 Cal.App.5th 116, 126; Compl., ¶¶ 19, 20.)

The Court further finds that no amendment can cure the above-identified defects of the first amended complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.